

**ORIGINAL**

**( S E R V E D )**  
**( May 14, 1998 )**  
**( FEDERAL MARITIME COMMISSION )**

**FEDERAL MARITIME COMMISSION**

**WASHINGTON, D. C.**

May 14, 1998

**DOCKET NO. 97-22**

**BERMUDA CONTAINER LINE LTD.**

v.

**SHG INTERNATIONAL SALES INC., FX COUGHLIN CO.,  
AND CLARK BUILDING SYSTEMS, INC.**

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**COMPLAINT DISMISSED AS TO RESPONDENT  
CLARK BUILDING SYSTEMS, INC.**

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Complainant Bermuda Container Line, Inc. (BCL) has advised that it does not wish to pursue its claim against respondent Clark Building Systems, Inc. (Clark) and inquires as to whether it needs to file a formal motion to dismiss. No formal motion is necessary and the complaint against Clark will therefore be dismissed. A decision on the merits of BCL's claim has been issued against another respondent, SHG International Sales, Inc. (SHG), arising out of the same matter. See Initial Decision, served March 24, 1998, F.M.C. notice of administrative finality, May 6, 1998. There is one remaining respondent, F.X. Coughlin

Co., a licensed freight forwarder, against whom litigation will continue under a schedule established by separate notice.

The proceeding began with the filing of a complaint by BCL on November 19, 1997, naming three respondents, SHG, Clark, and F.X. Coughlin Co. BCL sought payment of freight plus incidental charges amounting to \$4,193.75 for transportation of a shipment to Bermuda and alleged that the three respondents had violated section 10(a)(1) of the Shipping Act of 1984, among other laws and regulations. One respondent (SHG) declined to participate and suffered an adverse decision, cited above. After completing discovery, BCL has decided not to pursue its claim against Clark, as noted herein. However, BCL's claim against F.X. Coughlin also involves alleged violations of section 19 of the 1984 Act and 46 C.F.R. 510.21, which pertain to licensed freight forwarders like F.X. Coughlin.

Accordingly, the complaint against respondent Clark Building Systems, Inc. is dismissed.

A handwritten signature in black ink that reads "Norman D. Kline". The signature is written in a cursive, flowing style.

Norman D. Kline  
Administrative Law Judge